IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

Applicant / Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/562,853
Filing Date:	March 11, 2026
Confirmation Number:	4252
Art Unit / Examiner:	TC 2100 / AB5413A
Customer Number:	226458
Entity Status:	SMALL ENTITY (37 CFR § 1.27)
Title of Invention:	METHOD FOR DYNAMIC COMPOSITION OF BARE-METAL COMPUTING RESOURCES

APPLICANT'S SUPPLEMENTAL RESPONSE TO PRE-EXAMINATION NOTICES

(37 CFR §§ 1.53(b), 1.121, 1.125; MPEP § 608.01(q))

(PETITION FOR TWO-MONTH EXTENSION OF TIME TO NOVEMBER 9, 2026 SATISFIED VIA DEPOSIT CREDIT ALLOCATION UNDER 37 CFR § 1.136(a), CONDITIONAL REQUEST FOR SIX-MONTH SUSPENSION OF ACTION UNDER 37 CFR § 1.103(a), SUBSTITUTE SPECIFICATION WITH NO NEW MATTER CERTIFICATION, MARKED-UP COPY UNDER 37 CFR § 1.125(c), REPLACEMENT CLAIMS, REPLACEMENT ABSTRACT, FORMAL STANDALONE DRAWINGS, PERFECTED AIA INVENTOR DECLARATION, AND REQUEST FOR DEPOSIT ALLOCATION UNDER 37 CFR § 1.25(b))

Mail Stop Missing Parts
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In responsive supplemental follow-up to the Notice to File Missing Parts mailed July 9, 2026, the Notice of Incomplete Reply mailed October 7, 2026, and supplementing the prior response entered August 2, 2026, the pro se Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this comprehensive Supplemental Formalities Response.

Statutory Timeliness & Operative Period (37 CFR § 1.136(a)):
Applicant respectfully notes that under the two-month extension of time petitioned for herein under 37 CFR § 1.136(a) (running from the original two-month deadline of September 9, 2026), the response period extends through Monday, November 9, 2026. Concurrently herewith, the statutory extension fee of $276.00 (Fee Code 2252, Small Entity) is tendered via direct allocation of existing unapplied deposit funds. This supplemental filing is therefore fully timely.

Operative Superseding Instrument Standard:
Applicant expressly notes that in the event of any discrepancy or conflict between the technical instruments submitted herein and prior versions filed, the perfected instruments contained within this October 12, 2026 Supplemental Response submission shall strictly control and supersede prior filings in all respects.

I. WRITTEN REAFFIRMATION OF SMALL ENTITY STATUS (37 CFR § 1.27)

Applicant hereby formally reaffirms entitlement to Small Entity status under 37 CFR § 1.27 and 35 U.S.C. § 123, as officially verified and confirmed in the Notice of Incomplete Reply mailed October 7, 2026. All statutory fees are computed strictly under the Small Entity fee schedule.

II. CURING OF FORMALITY DEFECTS & COMPLETE ITEMIZED SUBMISSIONS

To pre-emptively cure every latent technical and formal informality before the application is assigned to an examining art unit, including curing line spacing defects cited in the Notice of Incomplete Reply (enforcing strict double spacing on the specification, claims, and abstract) and supplying formal standalone drawings, Applicant concurrently submits the following perfected instruments in this single, unified 9-document electronic envelope:

1. **Formal Certification of No New Matter (37 CFR § 1.125(b) & MPEP § 608.01(q)):** Applicant hereby formally certifies pursuant to 37 CFR § 1.125(b) and MPEP § 608.01(q) that the accompanying Substitute Specification contains **NO NEW MATTER**. The changes incorporated into the Substitute Specification relative to the as-filed specification are strictly limited to the excision of embedded graphic images (relocated to formal standalone drawing sheets under 37 CFR § 1.84), excision of embedded abstract and claims (relocated to standalone sheets under 37 CFR §§ 1.72(b), 1.75(h)), enforcement of strict double line spacing under 37 CFR § 1.52(b)(2)(i), and uniform flush-left paragraph formatting.

2. **Standalone Substitute Specification (37 CFR § 1.125(c)) [Patent Center Description: "Specification"]:**
   Applicant submits both a **Clean Copy of the Substitute Specification** and the mandatory **Marked-Up Copy** (showing all excisions in strike-through under 37 CFR § 1.121(b)(1)(iii)), ensuring the specification contains purely technical disclosure text without extraneous metadata or procedural blocks, curing the defect under MPEP Form Paragraph 6.28.02.

3. **Standalone Formal Drawing Sheet (37 CFR § 1.84) [Patent Center Description: "Drawings - only black and white line drawings"]:**
   Applicant submits a standalone formal drawing sheet containing **FIG. 1** on Sheet 1 of 1. The sheet bears the mandatory phrase **"Replacement Sheet"** in the top margin pursuant to 37 CFR § 1.121(d).

4. **Perfected Universal AIA Inventor Declaration (35 U.S.C. § 115, 37 CFR § 1.63) [Patent Center Description: "Oath or Declaration filed"]:**
   Applicant submits an executed, perfected AIA Inventor Declaration satisfying all statutory requirements under 35 U.S.C. § 115, 37 CFR § 1.63, and MPEP § 605, including the mandatory authorization averment, complete legal domicile, and criminal liability warning under 18 U.S.C. § 1001.

5. **Standalone Replacement Claims (37 CFR § 1.75(h)) [Patent Center Description: "Claims"]:**
   Applicant submits standalone Replacement Claims 1–6, commencing on a separate sheet in strict double spacing, under the pure statutory heading "CLAIMS", fully preserving the nested itemized sub-clause structure on Claims 1 and 2.

6. **Standalone Replacement Abstract (37 CFR § 1.72(b)) [Patent Center Description: "Abstract"]:**
   Applicant submits a standalone Replacement Abstract, commencing on a separate sheet in strict double spacing, under the pure statutory heading "ABSTRACT OF THE DISCLOSURE".

7. **Supplemental Petition for Extension of Time (37 CFR § 1.136(a)) [Patent Center Description: "Extension of Time"]:**
   Applicant submits a Supplemental Petition for Extension of Time under 37 CFR § 1.136(a), formally tendering payment for a Two-Month Extension via deposit credit allocation to secure statutory timeliness through November 9, 2026.

8. **Supplemental Request for Six-Month Suspension (37 CFR § 1.103(a)) [Patent Center Description: "Letter Requesting Suspension of Action"]:**
   Applicant submits a Supplemental Request for Suspension of Action under 37 CFR § 1.103(a), requesting that prosecution be suspended for six (6) months upon completion of pre-examination processing.

III. STATUTORY FEE RECONCILIATION, REQUEST FOR DEPOSIT ALLOCATION (37 CFR § 1.25(b)), AND MACRO PORTFOLIO EQUITY

A. Existing Unapplied Deposit Funds on Record

Official Office records (specifically the Notice of Incomplete Reply mailed October 7, 2026) confirm that the Office of Finance currently holds **$416.00 in unapplied funds on deposit** under this application serial number.

B. Mandatory Allocation Waterfall (37 CFR § 1.22(b) & MPEP § 509)

Pursuant to 37 CFR § 1.22(b) and MPEP § 509, Applicant respectfully requests that the Office allocate this existing **$416.00 unapplied deposit credit** according to the following strict statutory waterfall:

1. **Priority 1 (Timeliness Preservation — Extension of Time):**
   Allocate **$276.00** directly to satisfy the statutory fee for a **Two-Month Extension of Time** under 37 CFR § 1.136(a) (Fee Code 2252, Small Entity). By specifically directing these funds, payment has been legally tendered under 37 CFR § 1.136(a)(2) sufficient to maintain procedural pendency through November 9, 2026.

2. **Priority 2 (Prosecution Suspension):**
   From the remaining deposit balance ($416.00 − $276.00 = $140.00), allocate **$60.00** to satisfy the statutory **Suspension Processing Fee** under 37 CFR § 1.17(i) (Fee Code 2830, Small Entity), fully satisfying all fee requirements for the accompanying Request for Suspension. (Alternatively, if remitted concurrently by credit card at checkout, the full $140.00 surplus flows directly to Priority 3).

3. **Priority 3 (Pre-Examination Base Fees):**
   The remaining deposit surplus ($140.00 − $60.00 = **$80.00**) shall be applied toward statutory pre-examination base fees under 37 CFR § 1.16 in accordance with MPEP § 506.

C. Request for Administrative Notice of Fee Deficiency (37 CFR § 1.53(f)) & Macro Portfolio Equity

For any remaining pre-examination fee balance assessed under Small Entity rates, Applicant respectfully requests that the Office assess the balance via a formal **Notice of Fee Deficiency** pursuant to 37 CFR § 1.53(f) and MPEP § 506.

Applicant respectfully notes the equitable context of the broader portfolio: across Applicant's 102 patent applications, the USPTO Office of Finance currently holds over **$32,758.00** in unapplied pro se deposit funds detained by the agency without interest. This macro capital reserve provides substantial equitable security while pre-examination formalities are perfected and deficiency notices are processed.

IV. CONCLUSION

All formal and technical instruments having been fully perfected herein, statutory timeliness secured through November 9, 2026 via deposit credit allocation, and the suspension fee satisfied, Applicant respectfully requests that the Office of Patent Application Processing (OPAP) accept this response as timely and complete, issue an administrative Notice of Fee Deficiency under 37 CFR § 1.53(f) for any remaining base fee balance, and advance Application No. 19/562,853 to an examining art unit.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/
Reinaldo Javier Aguiar Marcano
Inventor and Pro Se Applicant
Mailing Address: 2302 Britton Ridge Drive, Katy, Texas 77494
Telephone: (202) 599-3979
Email: `rj.aguiar@gmail.com` (USPTO Account)
Email: `rj.aguiar.m@gmail.com`
Email: `reinaldo.aguiar.marcano@isbn9781971481296.com`
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